



COURT OF APPEALS

THIRD DISTRICT OF TEXAS

P.O. BOX 12547, AUSTIN, TEXAS 78711-2547

www.txcourts.gov/3rdcoa.aspx

(512) 463-1733

DARLENE BYRNE, CHIEF JUSTICE
MELISSA GOODWIN, JUSTICE
THOMAS J. BAKER, JUSTICE
GISELA D. TRIANA, JUSTICE
CHARI L. KELLY, JUSTICE
EDWARD SMITH, JUSTICE

JEFFREY D. KYLE, CLERK

August 5, 2021

The Honorable Velva L. Price
Civil District Clerk
P. O. Box 1748
Austin, TX 78767
* DELIVERED VIA E-MAIL *

RE: Court of Appeals Number: 03-17-00812-CV
Trial Court Case Number: D-1-GN-16-002620

Style: Appellants, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph "Mike" Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch// Cross-Appellants, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin, and the State of Texas v. Appellees, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin//Cross-Appellees, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph "Mike" Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch

Dear Ms. Price:

Enclosed, with reference to the above cause, is the mandate of this Court. Please file and execute in the usual manner. Your cooperation in this regard is appreciated.

In addition, as required by Texas Government Code, Sec. 51.204(d), the trial court clerk is notified that we will destroy all records filed in respect to this case with the exception of indexes, original opinions, minutes and general court dockets no earlier than six (6) years from the date final mandate is issued.

Very truly yours,


JEFFREY D. KYLE, CLERK

By: Courtland Crocker, Deputy Clerk

cc: Ms. Laurie Ratliff
Mr. Robert E. Henneke
Mr. Frank N. Ikard Jr.

Ms. A. Lee Czoher
Ms. Meghan L. Riley

M A N D A T E

THE STATE OF TEXAS

TO THE 53RD DISTRICT COURT OF TRAVIS COUNTY, GREETINGS:

Trial Court Cause No. D-1-GN-16-002620

Before our Court of Appeals for the Third District of Texas on November 27, 2019, the cause on appeal to revise or reverse your judgment between

Appellants, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph "Mike" Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch// Cross-Appellants, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin, and the State of Texas

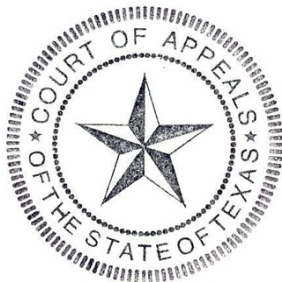
No. 03-17-00812-CV v.

Appellees, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin//Cross-Appellees, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph "Mike" Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch

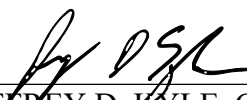
Was determined, and therein our Court of Appeals made its order in these words

This is an appeal from the judgment signed by the trial court on November 21, 2017. Having reviewed the record and the parties' arguments, the Court holds that there was reversible error in the court's judgment. Austin City Code sections 25-2-795 (restricting assembly) and 25-2-950 (banning type-2 rentals) are unconstitutional. Therefore, the Court reverses the trial court's judgment granting the City's no-evidence motion for summary judgment and renders judgment declaring sections 25-2-795 and 25-2-950 of the City Code void. The remainder of the judgment is affirmed and the case is remanded to the trial court for further proceedings consistent with this opinion. Appellee shall pay all costs relating to this appeal, both in this Court and in the court below.

Wherefore, we command you to observe the order of our Court of Appeals in this behalf and in all things have the order duly recognized, obeyed, and executed.



Witness the Honorable Darlene Byrne, Chief Justice of the Court of Appeals for the Third District of Texas, with the seal of the Court affixed in the City of Austin on Thursday, August 5, 2021.


 JEFFREY D. KYLE, CLERK

By: Courtland Crocker, Deputy Clerk

BILL OF COSTS**TEXAS COURT OF APPEALS, THIRD DISTRICT, AT AUSTIN**

No. 03-17-00812-CV

Appellants, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph “Mike” Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch// Cross-Appellants, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin, and the State of Texas

v.

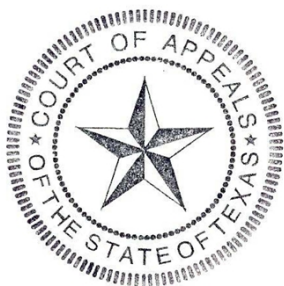
Appellees, City of Austin, Texas; and Steve Adler, Mayor of The City of Austin//Cross-Appellees, Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph “Mike” Hebert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch
(No. D-1-GN-16-002620 IN 53RD DISTRICT COURT OF TRAVIS COUNTY)

Type of Fee	Charges	Paid	By
FILING	\$15.00	E-PAID	LAURIE RATLIFF
FILING	\$10.00	E-PAID	LAURIE RATLIFF
FILING	\$10.00	E-PAID	TRACY MORTARA
FILING	\$10.00	E-PAID	RUTH BLACKWELDER
FILING	\$10.00	E-PAID	KRIS SCHLOTT
FILING	\$10.00	E-PAID	KRIS SCHLOTT
SUPPLEMENTAL CLERK'S RECORD	\$54.00	UNKNOWN	UNKNOWN
FILING	\$10.00	E-PAID	MICHAEL SIEGEL
SUPPLEMENTAL CLERK'S RECORD	\$0.00	UNKNOWN	UNKNOWN
FILING	\$10.00	E-PAID	ROSIO GONZALEZ
SUPPLEMENTAL CLERK'S RECORD	\$0.00	UNKNOWN	UNKNOWN
SUPREME COURT CHAPTER 51 FEE	\$50.00	E-PAID	ROSIO GONZALEZ
INDIGENT	\$25.00	E-PAID	ROSIO GONZALEZ
STATEWIDE EFILING FEE	\$30.00	E-PAID	ROSIO GONZALEZ
FILING	\$100.00	E-PAID	ROSIO GONZALEZ
CLERK'S RECORD	\$1,994.00	UNKNOWN	UNKNOWN
SUPPLEMENTAL CLERK'S RECORD	\$846.00	UNKNOWN	UNKNOWN
INDIGENT	\$25.00	E-PAID	RUTH BLACKWELDER
FILING	\$100.00	E-PAID	RUTH BLACKWELDER
SUPREME COURT CHAPTER 51 FEE	\$50.00	E-PAID	RUTH BLACKWELDER
STATEWIDE EFILING FEE	\$30.00	E-PAID	RUTH BLACKWELDER
FILING	\$100.00	E-PAID	ROBERT HENNEKE
STATEWIDE EFILING FEE	\$30.00	E-PAID	ROBERT HENNEKE
SUPREME COURT CHAPTER 51 FEE	\$50.00	E-PAID	ROBERT HENNEKE
INDIGENT	\$25.00	E-PAID	ROBERT HENNEKE

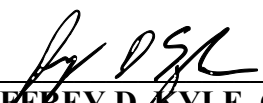
Balance of costs owing to the Third Court of Appeals, Austin, Texas: 0.00

Court costs in this cause shall be paid as per the Judgment issued by this Court.

I, **JEFFREY D. KYLE**, CLERK OF THE THIRD COURT OF APPEALS OF THE STATE OF TEXAS, do hereby certify that the above and foregoing is a true and correct copy of the cost bill of THE COURT OF APPEALS FOR THE THIRD DISTRICT OF TEXAS, showing the charges and payments, in the above numbered and styled cause, as the same appears of record in this office.



IN TESTIMONY WHEREOF, witness my hand
and the Seal of the **COURT OF APPEALS** for the
Third District of Texas on August 5, 2021.



JEFFREY D. KYLE, CLERK

By: Courtland Crocker, Deputy Clerk